

25CHCV00661 25CHCV00661

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-09-15

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF47%2C09%2F15%2F2026

Source SHA-256: ac83a40c43d271e55a8faa3cc2813a1df393c840ac385c43f33932bc25a709d8

Case Number: 25CHCV00661 Hearing Date: September 15, 2026 Dept: F47

Dept. F47

Date: 9/15/26

TRIAL DATE: 7/6/27

Case #25CHCV00661

MOTION TO BE

RELIEVED AS COUNSEL

Motion filed on 4/16/26.

MOVING ATTORNEY: John B. Larson

CLIENT: Defendant Blue Can Company, LLC

NOTICE: ok

RULING: The motion is denied without
prejudice.

On 4/16/26, attorney John B. Larson filed and served the instant
motion to be relieved as counsel for Defendant Blue Can Company, LLC due to a
break down in the attorney-client relationship.

The declaration filed in support of the motion indicates
that the client's address was confirmed by email and mailing of monthly
invoices. (See Declaration,

No.3.b.(1)(d)). It is not clear whether an email was sent which specifically requested that the client confirm its address, to whom such email was sent at the LLC and/or whether a response was received. Merely sending emails and mailing invoices to an address every month does not confirm that the address to which they were sent is the current address for the client. The declaration goes on to state that even if the attorney is unable to serve the client with the motion, the court should still grant the motion because counsel had made diligent efforts to contact and serve the client. (See Declaration, No.3.c.). However, attorney Larson has failed to set forth any of the efforts purportedly made. (See Declaration, No. 3.b.(2)).

Additionally, attorney Larson has failed to submit a proposed order with the motion. Instead of a proposed order on the required civil form MC-053, a "Proposed Order (Cover Sheet)" which attaches the proof of service for the motion documents has been filed.

Dept. F47

Date: 9/15/26

TRIAL DATE: 7/6/27

Case #25CHCV00661

MOTION TO BE
RELIEVED AS COUNSEL

Motion filed on 4/16/26.

MOVING ATTORNEY: John B. Larson

CLIENT: Defendant NGI Corporation

NOTICE: ok

RULING: The motion is denied without prejudice.

On 4/16/26, attorney John B. Larson filed and served the instant motion to be relieved as counsel for Defendant NGI Corporation due to a break down in the attorney-client relationship.

The Notice of Motion indicates that the client is “other” “a Wyoming Corporation.” (See Notice, No.4.k.). It is not clear why the corporation designation was not marked. (Notice, No.4.b.).

The declaration filed in support of the motion indicates that the client’s address was confirmed by email and mailing of monthly invoices. (See Declaration, No.3.b.(1)(d)). It is not clear whether an email was sent which specifically requested that the client confirm its address, to whom such email was sent at the corporation and/or whether a response was received. Merely sending emails and mailing invoices to an address every month does not confirm that the address to which they were sent is the current address for the client. The declaration goes on to state that even if the attorney is unable to serve the client with the motion, the court should still grant the motion because counsel had made diligent efforts to contact and serve the client. (See Declaration, No.3.c.). However, attorney Larson has failed to set forth any of the efforts purportedly made. (See Declaration, No. 3.b.(2)).

Additionally, attorney Larson has failed to submit a proposed order with the motion. Instead of a proposed order on the required civil form MC-053, a “Proposed Order (Cover Sheet)” which attaches the proof of service for the motion documents has been filed.